

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

SUMMONS

-----X
THERESA RAMOS-VILLEGA
Plaintiffs,

Plaintiff designates
BRONX County as the
place of trial.

-against-

THE CITY OF NEW YORK, POLICE OFFICER
AHSAN ZAFAR Shield No 03773, "JOHN DOE 1-
10," identities unknown but believed to
be New York City police officers from 41st
Precinct who assisted in arrest and
assault of plaintiff;
Defendants.

The basis of venue is:
County of Occurrence
CPLR 504(3)

Plaintiff resides at
1127 Calhoun Avenue
Bronx, NY

-----X
To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: MINEOLA, NEW YORK
January 31, 2015



Steve J Marchelos
MARCHELOS LAW P.C.
Attorneys for Plaintiff(s)
87 Mineola Boulevard
Mineola, New York 11501
(516) 248-0202

TO:
CITY OF NEW YORK, 100 Church Street, New York, NY 10007

POLICE OFFICER AHSAN ZAFAR Shield No 03773, c/o 41st Police
Precinct, 1035 Longwood Ave, Bronx, NY 10459

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X

THERESA RAMOS-VILLEGA
Plaintiffs,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, POLICE OFFICER AHSAN
ZAFAR Shield No 03773, "JOHN DOE 1-10,"
identities unknown but believed to be New
York City police officers from 41st Precinct
who assisted in arrest and assault of
plaintiff;
Defendants.

Index No:

-----X

THERESA RAMOS-VILLEGA, by his attorneys, MARCHELOS LAW P.C.,
alleges the following, upon information and belief, as her
Complaint:

NATURE OF THE ACTION

1. This civil rights action arises from the defendant
Police Officers' unlawful and improper arrest and imprisonment of
plaintiff, physical assault, abuse, battery and harassment of
plaintiff, and use of intimidation and excessive force upon
plaintiff on November 3, 2013;

2. Plaintiff seeks declaratory relief pursuant to CPLR
3001 and 28 U.S.C. §2201, compensatory and punitive damages for
violation of plaintiff's civil rights pursuant to 42 U.S.C.
§§1981, 1983, 1985 and 1986 and an award of costs, disbursements
and attorneys fees under 42 U.S.C. §1988. Plaintiff also seeks
compensatory damages under State Law Tort claims;

JURISDICTION

3. This action is predicated upon violations of plaintiff's Civil Rights protected under the United States Constitution inclusive of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution and actionable pursuant to 42 U.S.C. §§ 1981, 1983, 1985 and 1986;

VENUE

4. That Venue for this action is placed in the County of Bronx because that is the county of occurrence of the acts alleged herein pursuant to CPLR 504(3);

NOTICE OF CLAIM

5. That on January 30, 2014, plaintiff caused a Notice of Claim to be served upon defendants, THE CITY OF NEW YORK;

6. The Notice of Claim was delivered to the person designated by law as a person to whom such claims may be presented and served;

7. The Notice of Claim was in writing, sworn to by or on behalf of the plaintiff and contained the name and post office address of the plaintiff and plaintiff's attorney, the nature of the claim, the time when the place where and the manner by which the claim arose, and the damage and injuries claimed to have been sustained;

8. That on January 20, 2015, plaintiff presented before the defendant, CITY OF NEW YORK, and gave testimony pursuant to General Municipal Law 50-h about the acts and occurrence which

gave rise to this action;

9. The defendant, CITY OF NEW YORK, never requested a physical exam;

10. Defendant, CITY OF NEW YORK has failed and refused to pay and/or adjust the claim within the statutory period of time;

11. This action has been started within one year and ninety days after the happening of the event upon which the claim is based;

PARTIES

12. Plaintiff, THERESA RAMOS-VILLEGA, is and continues to be a resident of the State of New York, County of Bronx;

13. Defendant, the CITY OF NEW YORK is a municipal corporation duly authorized and existing under and by virtue of the laws of the State of New York;

14. Defendant, the CITY OF NEW YORK, has established and maintains a police department which is an agency of the defendant, CITY OF NEW YORK;

15. At all times relevant, defendants the CITY OF NEW YORK employed the individual defendant, POLICE OFFICER AHSAN ZAFAR;

16. At all times relevant, defendant, POLICE OFFICER AHSAN ZAFAR was a duly appointed and acting police officer of the CITY OF NEW YORK;

17. At all times relevant, defendants the CITY OF NEW

YORK employed the individual defendants identified herein only as "JOHN DOE 1-10", but believed to be New York City police officers from the 41st Police Precinct who assisted in the arrest and assault of plaintiff along with Officer ZAFAR;

18. At all times relevant, defendants, "JOHN DOE 1-10" were duly appointed and acting police officers of the CITY OF NEW YORK;

19. At all times relevant, the individual defendants were acting under the color of State Law;

20. At all times relevant, the individual defendants were acting both in their individual and official capacity as employees of defendant the CITY OF NEW YORK;

21. Notwithstanding the unconstitutional and unlawful conduct, the actions of the individual defendants were taken in the course of their duties and were incidental to their otherwise lawful functions as agents, servants and employees of the CITY OF NEW YORK;

FACTS UNDERLYING PLAINTIFF'S CLAIMS FOR RELIEF

22. That on or about November 3, 2013 at approximately 1:45 a.m. of that day, plaintiff, THERESA RAMOS-VILLEGA, was falsely and unlawfully arrested by defendant, CITY OF NEW YORK, its agents, servants and/or employees, including Officer ZAFAR, while she was celebrating her daughter's baby shower at A's Banquet Hall on 1093 Southern Boulevard, Bronx, New York;

23. That on that day and time plaintiff and her guests had lawfully rented the premises known as A's Banquet Hall located at 1093 Southern Boulevard, Bronx, NY;

24. That on or before, 1:30 a.m. the police were called to the location, purportedly in response to an argument that had occurred outside the subject premises;

25. That when the police arrived, the "argument" had ended;

26. That at and about 1:30 a.m., plaintiff was beginning to close down the party and thank all guests who attended;

27. That at and about this time, defendant police officers from the 41st police precinct, including Police Officer ZAFAR, entered the premises in a violent and aggressive manner;

28. That at and about this time, without any reasonable basis or cause, defendant police officers from the 41st police precinct, including Police Officer ZAFAR, were physically pushing plaintiff's party guests out of the premises;

29. That plaintiff observed police officers assault and physically attack some of her party guests;

30. That when plaintiff tried to get a shield number of one of the officers who had assaulted and beaten a party guest, believed to be defendant ZAFAR, she was violently punched in the face by ZAFAR;

31. That as a result of this punch by defendant, ZAFAR,

plaintiff was thrown backwards to the ground, banged her head and became unconscious for a brief moment;

32. Thereafter, plaintiff was turned over, handcuffed behind her back and arrested by defendant ZAFAR;

33. That plaintiff was dragged out of the premises in handcuffs;

34. That as plaintiff was being taken to a police car for transport, the officers were laughing at her and one of them stated that they would've hit her with their baton/nightstick;

35. Plaintiff was then dragged out of the premises, placed into the police car and taken initially to the 41st police precinct and then to Lincoln Hospital for medical treatment;

36. That plaintiff remained in police custody, and the custody of the NYC Department of Corrections at Bronx Central Booking, for a period of time exceeding 30 hours. In fact, she was not release from custody until she was arraigned and released on her own recognizance two days later;

37. That plaintiff was charged with various offenses including obstructing governmental administration, attempted assault, menacing, harassment and disorderly conduct all predicated upon false allegations proffered by the defendant police officer, ZAFAR, who assaulted plaintiff;

38. That none of these charges were supported by the facts nor was there probable cause to believe that plaintiff

committed any act that would support any of these charges;

39. That the arrest was initiated and continued without probable cause to believe any crime had been committed by the plaintiff;

40. That plaintiff had knowledge of her confinement;

41. That plaintiff did not consent to the confinement;

42. That plaintiff was prevented from leaving the confinement;

43. That during this confinement, plaintiff was fingerprinted and photographed by, and at the direction of, the defendants;

44. That on or about July 15, 2014, the charges against plaintiff were dismissed;

45. That the physical assault and battery was unjustified and excessive by the individual defendant, ZAFAR, as plaintiff did not commit any act which would provoke such a violent response from the defendant;

46. That plaintiff sustained great fear, physical harm, emotional harm in the form of fear, anxiety and stress, disgrace, embarrassment and loss of self esteem as a result of the aforesaid arrest, imprisonment, assault, battery, intimidation and abusive behavior perpetrated upon her by defendants as a result of the afore-referenced events including anxiety and stress and physical injuries which required medical treatment and

caused her to incur, and/or be responsible for the cost for medical care;

47. Plaintiff suffered from a loss of liberty and deprivation of civil rights protected by the United States and New York State Constitution as a result of the afore-referenced events;

**FIRST CAUSE OF ACTION FOR VIOLATION OF
PLAINTIFF'S SUBSTANTIVE AND PROCEDURAL RIGHTS
TO BE FREE FROM UNREASONABLE SEARCHES AND
SEIZURES UNDER THE FOURTH, FIFTH AND
FOURTEENTH AMENDMENTS TO THE UNITED STATES
CONSTITUTION PREDICATED UPON FALSE ARREST AND
IMPRISONMENT**

48. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

49. As a result of the aforescribed actions, including the arrest and imprisonment of plaintiff without probable cause, the defendants, POLICE OFFICER AHSAN ZAFAR and the officers designated "JOHN DOE 1-10," individually deprived plaintiff, THERESA RAMOS-VILLEGA, of the ***rights, privileges and immunities*** secured by the Constitution and laws of the United States and the Fourteenth Amendment;

50. As a result of the aforescribed actions, these defendants individually deprived plaintiff, of the ***right to be free from unreasonable search and seizures*** secured by the Constitution and laws of the United States and the Fourth and

Fourteenth Amendments;

51. As a result of the aforescribed actions, these defendants individually deprived plaintiff of her *right to liberty* without due process of law secured by the Constitution and laws of the United States and the Fifth and Fourteenth Amendments;

52. As a result of the aforescribed actions, including the patently offensive physical conduct and threatening remarks made by defendants during the aforementioned seizure, arrest, incarceration and assault of plaintiff, these defendants individually deprived plaintiff of *Equal Protection under the Law* secured by the Constitution and laws of the United States and the Fourteenth Amendment;

53. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. §§ 1981, 1983, 1985 and 1986;

54. The aforescribed acts of these defendants were intentional, willful, malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights;

55. As a result of the foregoing, plaintiff has suffered damages;

**SECOND CAUSE OF ACTION FOR VIOLATION OF
PLAINTIFF'S SUBSTANTIVE AND PROCEDURAL RIGHTS
TO BE FREE FROM UNREASONABLE SEARCHES AND
SEIZURES UNDER THE FOURTH, FIFTH AND
FOURTEENTH AMENDMENTS TO THE UNITED STATES**

**CONSTITUTION PREDICATED UPON USE OF EXCESSIVE
FORCE**

56. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

57. As a result of the aforescribed actions, including the use of excessive physical force and intentional infliction of emotional harm upon the plaintiff, the defendants, POLICE OFFICER AHSAN ZAFAR and the officers designated "JOHN DOE 1-10," individually deprived plaintiff of the ***rights, privileges and immunities*** secured by the Constitution and laws of the United States and the Fourteenth Amendment;

58. As a result of the aforescribed actions, these defendants individually deprived plaintiff of the ***right to be free from unreasonable seizures*** secured by the Constitution and laws of the United States and the Fourth and Fourteenth Amendments;

59. As a result of the aforescribed actions, these defendants individually deprived plaintiff of her ***right to liberty*** without due process of law secured by the Constitution and laws of the United States and the Fifth and Fourteenth Amendments;

60. As a result of the aforescribed actions, including the patently offensive physical conduct and threatening remarks

made by defendants during the aforementioned use of excessive force and intentional infliction of emotional harm upon plaintiff, these defendants individually deprived plaintiff of ***Equal Protection under the Law*** secured by the Constitution and laws of the United States and the Fourteenth Amendment;

61. The amount and type of physical force used upon plaintiff by these defendants was unnecessary, improper, excessive and not reasonably justified under any circumstances;

62. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. §§ 1981, 1983, 1985 and 1986;

63. The aforescribed acts of these defendants were intentional, willful, malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights and physical well being;

64. The aforementioned use of force and infliction of emotional harm caused immediate injury in the form of physical and emotional pain, suffering, shock, fright, humiliation, embarrassment, disgrace and deprivation of plaintiff's constitutional rights;

65. As a result of the foregoing, plaintiff has suffered damages;

**THIRD CAUSE OF ACTION PREDICATED UPON
DEFENDANT'S FAILURE TO RE-TRAIN AND SUPERVISE
ITS OFFICERS ON LAWFUL USE OF FORCE THUS**

**CREATING A NEW CULTURE, CUSTOM, POLICY AND
PRACTICE REGARDING THE ILLEGAL USE OF FORCE
IN VIOLATION OF PLAINTIFF'S CIVIL RIGHTS
(MONELL)**

66. Plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs set forth above, with the same force and effect as if more fully set forth herein.

67. That the afore-described actions, including the manner in which defendant, CITY OF NEW YORK, created, adopted, implemented and maintained its policies regarding use of physical force (including the training and supervision of the individual defendant officers that used excessive force upon the plaintiff) violated the plaintiffs' civil rights;

68. That the afore-described actions, including the failure of defendant, CITY OF NEW YORK, to properly train and supervise its employees on its policies regarding use of physical force, including recognizing and respecting the constitutional boundaries of the use of such force, demonstrates a reckless disregard for the civil rights of lawful citizens, including the plaintiffs herein;

69. That the failure of defendant, CITY OF NEW YORK, to properly train and supervise its employees on its policies regarding use of physical force, including recognizing and respecting the constitutional boundaries of the use of such force, has been known to the supervisory policy making employees

of defendant, CITY OF NEW YORK, for a substantial period of time;

70. That the reckless disregard for the deficient and dangerous manner in which this defendant, CITY OF NEW YORK, permitted its policies regarding use of physical force to be ignored and blatantly disregarded, has also been known to the supervisory policy making employees of defendant, CITY OF NEW YORK, for a substantial period of time;

71. That the reckless disregard for the deficient, dangerous and improper manner in which its officers have been trained to properly use physical force has also been known to the supervisory policy making employees of defendant, CITY OF NEW YORK, for a substantial period of time;

72. That the reckless disregard for the deficient dangerous and improper manner in which its officers have been supervised in the proper use of physical force has also been known to the supervisory policy making employees of defendant, CITY OF NEW YORK, for a substantial period of time;

73. That despite its knowledge of repeated abuse of its policies regarding the use of force, the supervisory and policy making employees of defendant, CITY OF NEW YORK, have not taken steps to terminate the known departure from same, have not disciplined or otherwise properly supervised or retrained the officers who engaged in said departures, have not condemned or otherwise discouraged said practices, have not effectively

trained or retrained employees with regard to proper use of physical force or the manner in which it should be employed and the circumstances when it should be employed, and have instead sanctioned the manner in which its officers have ignored the policies as previously described through their deliberate indifference to the effect the departure of such policy and practices has on the constitutional rights of the general public, including residents and visitors of the CITY OF NEW YORK and the plaintiff herein;

74. That defendant, CITY OF NEW YORK, by and through its policy making agents, servants and/or employees, having sanctioned this departure from its policies regarding use of force have created a new culture, custom, policy and practice regarding the illegal use of force which is in violation of the civil rights of plaintiffs and, as such, are vicariously liable to the plaintiff for injuries resulting from violations of the Fourth, Fifth and Fourteenth Amendments of the United States Constitution actionable under and pursuant to 42 U.S.C. Sections 1981, 1983, 1985, 1986, 1988;

75. As a result of the acts stated above, plaintiff has suffered a deprivation of liberty without probable cause, denial of due process, invasion of privacy, damage to character and reputation, mental stress and anxiety, and plaintiffs will continue to suffer same in the future;

76. As a result of the acts stated above, plaintiff was compelled to and did incur expenses as a result, and were caused great social embarrassment in their community;

77. As a result of the foregoing, plaintiff has suffered damages;

FOURTH CAUSE OF ACTION FOR ASSAULT

78. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

79. As a result of the foregoing, defendants, individually and/or vicariously, by and through their agents, servants and employees, placed plaintiff in apprehension of imminent harmful and offensive contact, thereby committing an assault upon him;

80. As a result of the foregoing, plaintiff has suffered damages;

FIFTH CAUSE OF ACTION FOR BATTERY

81. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

82. As a result of the foregoing, plaintiff was without just cause or provocation, maliciously, and intentionally battered and physically abused causing serious physical and emotional harm to plaintiff;

83. That at the time and place aforesaid, the defendants, individually and/or vicariously by and through their agents, servants and/or employees, without just cause or provocation, maliciously, recklessly, and/or intentionally battered and physically abused plaintiff causing serious injury to plaintiff;

84. That the occurrence and injuries sustained by plaintiff, were caused solely by the malicious, reckless, and/or intentional conduct of the defendants, individually and/or vicariously by and through their, agents, servants and/or employees, without any provocation on the part of the plaintiff, contributing thereto;

85. As a result of the foregoing, plaintiff has suffered damages;

**SIXTH CAUSE OF ACTION FOR FALSE ARREST AND
IMPRISONMENT**

86. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

87. As a result of the foregoing, plaintiff was, without just cause or provocation, maliciously, recklessly, and/or intentionally arrested and imprisoned without probable cause resulting in an unlawful confinement, deprivation of liberty and other serious emotional injury to plaintiff;

88. That at the time and place aforesaid, the defendants, individually and/or vicariously by and through their agents,

servants and/or employees, without just cause or provocation, maliciously, recklessly, and/or intentionally arrested and imprisoned plaintiff without probable cause resulting in an unlawful confinement, deprivation of liberty and other serious emotional injury to plaintiff;

89. That the occurrence, damages and injuries sustained by plaintiff were caused solely by the malicious, reckless, and/or intentional conduct of the defendants, individually and/or vicariously by and through their agents, servants and/or employees, without any provocation on the part of the plaintiff contributing thereto;

90. As a result of the foregoing, plaintiff has suffered damages;

**SEVENTH CAUSE OF ACTION FOR NEGLIGENT AND
INTENTIONAL INFLICTION OF EMOTIONAL HARM**

91. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

92. As result of the foregoing, defendants, individually and or vicariously, by and through their agents, servants and/or employees, intentionally, wantonly, recklessly, carelessly and/or negligently engaged in extreme and outrageous conduct measured by the reasonable bounds of decency tolerated by decent society thereby inflicting mental and emotional distress upon plaintiff;

93. As a result of the foregoing, plaintiff has suffered

damages;

**EIGHTH CAUSE OF ACTION FOR NEGLIGENT
SUPERVISION AND RETENTION**

94. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

95. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, by its agents, servants and/or employees carelessly, negligently, and recklessly hired applicants for the position of police officers;

96. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, by its agents, servants and/or employees carelessly, negligently, and recklessly trained applicants for the position of police officers;

97. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, by its agents, servants and/or employees carelessly, negligently and recklessly supervised, controlled, managed, maintained and inspected the activities of its police officers;

98. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, by its agents, servants and/or employees caused, permitted and allowed its police officers to act in an illegal, unprofessional, negligent and/or deliberate manner in carrying out their official duties and/or responsibilities;

99. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, by its agents, servants and/or employees carelessly, negligently and recklessly retained in its employ, police officers clearly unfit for the position who acted in an illegal, unprofessional, negligent and/or deliberate manner in carrying out their official duties and/or responsibilities prior to the date of the incident complained of herein;

100. That at the time and place aforesaid, the defendant CITY OF NEW YORK, by its agents, servants and/or employees, without just cause or provocation, maliciously, recklessly, and/or intentionally assaulted, battered, physically abused, attacked, threatened, intimidated, falsely arrested and imprisoned, plaintiff causing serious personal injury to plaintiff;

101. That the occurrence and injuries sustained by plaintiff, were caused solely by, and as a result of the malicious, reckless, negligent, and/or intentional conduct of the defendant, CITY OF NEW YORK, its agents, servants and/or employees as set forth above, without any provocation on the part of the plaintiff contributing thereto, specifically, the negligent and reckless manner in which said defendant hired, trained, supervised, controlled, managed, maintained, inspected and retained its police officers and police department;

102. As a result of the foregoing, plaintiff has suffered

damages;

NINTH CAUSE OF ACTION FOR PUNITIVE DAMAGES

103. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

104. That the aforesaid occurrence and resulting injuries to plaintiff was due to the willful, wanton, reckless and/or malicious conduct of the individual defendants, POLICE OFFICER AHSAN ZAFAR and the officers designated "JOHN DOE 1-10,";

105. That the aforesaid occurrence and resulting injuries to plaintiff were due to the conduct of these defendants which reflects an utter indifference to the safety and well being of others and specifically the safety and well being of plaintiff;

106. That the conduct of these individual defendants exhibited a reckless disregard for human life and the safety and well being of others and more particularly, for the life, safety and well being of plaintiff;

107. As a result of the foregoing, defendants, including defendant, POLICE OFFICER AHSAN ZAFAR and the officers designated "JOHN DOE 1-10," should be made to pay punitive damages to punish them for their wanton, reckless and malicious acts and thereby discourage these defendants and others from acting in a similar way in the future;

108. As a result of the foregoing, plaintiff has suffered

damages;

REQUEST FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that judgment be entered as follows:

(A) Declaratory relief as follows:

1. As to the first cause of action, a declaration that plaintiff's substantive and procedural rights to be free from unreasonable searches and seizures under the Fourth Fifth and Fourteenth Amendment of the United States Constitution was violated predicated upon the unlawful arrest and imprisonment of plaintiff;
2. As to the second cause of action, a declaration that plaintiff's substantive and procedural rights to be free from unreasonable search and seizure under the Fourth, Fifth and Fourteenth Amendment of the United States Constitution was violated predicated upon the use of excessive force;
3. As to the third cause of action, a declaration that plaintiff's substantive and procedural rights under the Fourth, Fifth and Fourteenth amendments to the United States Constitution were violated predicated upon defendant's failure to re-train and supervise its officers on lawful use of force thus creating a new culture, custom, policy and practice regarding the illegal use of force MONELL);

(B) As to the first through eighth causes of action, compensatory damages in an amount that exceeds the jurisdictional limits of all lower Courts that would otherwise have jurisdiction;

(C) As to the first through ninth causes of action, punitive damages in an amount that exceeds the jurisdictional limits of all lower Courts that would

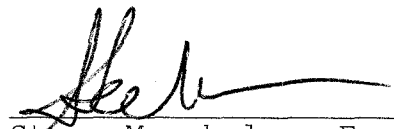
otherwise have jurisdiction, by reason of the wanton,
willful and malicious character of the conduct complained of
herein;

(D) As to the first through ninth causes of action, an
award to plaintiff of the costs and disbursements herein;

(E) As to the first through third causes of action, an
award of attorney's fees as provided under 42 U.S.C. §1988;
and

(F) Such other and further relief as this Court may deem
just, proper and equitable

Dated: January 31, 2015
Mineola, New York



Steve Marchelos, Esq.
MARCHELOS LAW P.C.
Attorneys for Plaintiff
THERESA RAMOS-VILLEGA
87 Mineola Boulevard
Mineola, New York 11501
(516) 248-0202

ATTORNEY VERIFICATION

Steve J Marchelos, an attorney duly admitted to practice law in the Courts of the State of New York affirms the following to be true under the penalties of perjury pursuant to CPLR 2106.

That affirmant is the attorney for the plaintiff in the action within; that affirmant has read the foregoing **COMPLAINT** and knows the contents thereof; that the contents are true to affirmant's own knowledge except as to the matters therein stated to be alleged upon information and belief, and as to those matters affirmant believes them to be true; that the reason this verification is not made by plaintiff and is made by affirmant is that plaintiff is not presently in the county where the attorneys for the plaintiff have their office.

Affirmant further says that the source of deponent's information and the grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are from conversations with said plaintiff and investigations made by affirmant's office on behalf of said plaintiff.

Dated: Mineola, New York
January 31, 2015


Steve J Marchelos

Index No.
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

THERESA RAMOS-VILLEGA
Plaintiffs,

-against-

THE CITY OF NEW YORK, POLICE OFFICER AHSAN ZAFAR Shield No 03773,
"JOHN DOE 1-10," identities unknown but believed to be New York
City police officers from 41st Precinct who assisted in arrest
and assault of plaintiff;
Defendants.

SUMMONS AND VERIFIED COMPLAINT

MARCHELOS LAW P.C.
ATTORNEYS FOR PLAINTIFF(S)
87 MINEOLA BLVD.
MINEOLA, NEW YORK 11501
(516) 248-0202

Service of a copy of the within

is hereby admitted.

Dated:

.....
Attorney(s) for

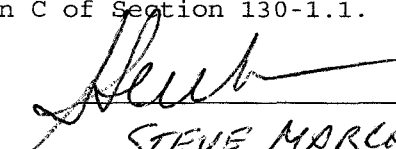
Attorney Certification Pursuant to 22 NYCRR Section 130-1.1.A

The undersigned, an attorney duly admitted to practice law in the Courts
of the State of New York, respectfully affirms the truth of the following
statement under the penalty of perjury pursuant to CPLR §2106

The undersigned attorney hereby certifies that to the best of his/her
knowledge, information and belief, formed after an inquiry reasonable under
the circumstances, the presentation of the paper(s) or the contents herein are
not frivolous as defined in Subsection C of Section 130-1.1.

Dated:

1/31/15


STEVE MARCHELOS, ESQ